

Court No. - 40

Case :- WRIT - C No. - 21520 of 2021

Petitioner :- Shree Pal

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Anil Kumar

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Manoj Misra,J.

Hon'ble Jayant Banerji,J.

It appears that there exists some dispute between the petitioner and the 5th respondent.

Under the circumstances, the prayer made in this petition can appropriately be addressed after service of notice upon the 5th respondent.

Learned Standing Counsel has accepted notice on behalf of respondent no. 1 and Sri Alok Mishra has accepted notice on behalf of respondent no. 4.

Let notice be issued to respondent no. 5 fixing 27.10.2021. Steps, to serve the 5th respondent, shall be taken through registered speed post within three days.

List on 27.10.2021, by which date the respondents may file their respective counter affidavit.

Order Date :- 23.9.2021

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Counsel for Petitioner :- Anil Kumar

Counsel for Respondent :- C.S.C.,Alok Mishra,Manoj Kumar
Srivastava

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Manjive Shukla,J.

Heard learned counsel for the petitioner, learned counsel for the Electricity Department.

The present Writ Petition is preferred seeking direction in nature of certiorari quashing the impugned order dated 23.02.2021 passed by the Respondent No. 2 as well as order dated 25.11.2019 passed by the Respondent No. 3.

As it is being informed that initially that the petitioner was accorded separate connection being as tenant in the premises in question as agreement between the landlord and tenant was only for two years. The moment the said agreement expired, landlord had written to the Electricity Department for the disconnection of petitioner's connection and consequently Electricity Department disconnected the connection of petitioner.

Learned counsel for the petitioner agreed with the fact that there is a dispute between petitioner and the landlord. He submits that he has no objection in case, the Court is inclined to direct the petitioner to get the new electricity connection in line of Clause 4.3 of Uttar Pradesh Electricity Supply Code, 2005 (hereinafter referred to as "the Code").

The said proposal has not been objected by learned counsel who represents the Electricity Department.

Considering the facts and circumstances of the case, without advertng on merits of the case, we direct that in case petitioner moves an appropriate Application to get new electricity connection as per Clause 4.3 of the Code within two weeks from today, we hope and trust that the said application shall be considered and decided within further six weeks' time in accordance with law.

With the aforesaid direction, the present Writ Petition is disposed of.

Order Date :- 24.3.2023

A. Mandhani